



Tribunals Ontario

Landlord and Tenant Board

Practice Direction on Fee Waiver

(Disponible en français)

This Practice Direction supports Rule 35 of the [Landlord and Tenant Board Rules of Practice](#) and provides guidance about what the [LTB](#) expects of parties and in turn what the parties can expect of the [LTB](#). It assists in understanding the Rule.

Purpose

This Practice Direction discusses the fee waiver process in proceedings before the Landlord and Tenant Board ("LTB"). It relates to s. 181.1 of the *Residential Tenancies Act, 2006* and to Rule 2 of the [LTB](#) rules.

Who Can Request a Fee Waiver

You may [request a fee waiver](#) if you meet the financial eligibility requirements and you are either a party to an application, or you are directly affected by an application. Only individuals can request a fee waiver. It is not available to a business or organization.

Who is Eligible for a Fee Waiver

In accordance with Rules 2, you will be eligible for a fee waiver if:

1. Your primary source of household income is from one of the following income support programs or a combination of these programs:

1. Ontario Works;
2. Ontario Disability Support Program;
3. Old Age Security Pension with the Guaranteed Income Supplement;
4. War Veteran's Allowance; or
5. Canada Pension Plan.

OR

2. Your gross monthly household income is less than the amount specified in the table below. This amount is based on the size of your household including dependent children and your spouse, if any.

Number of People in Household	Gross Monthly Household Income
1	Less than \$1,650

2	Less than \$2,475
3	Less than \$2,840
4	Less than \$3,390
5 or more	Less than \$3,940

Note that if you are in receipt of Old Age Security Pension, you only qualify for a fee waiver if you are also in receipt of a Guaranteed Income Supplement.

"Primary source of income" is your main source of income.

"Gross monthly household income" is the monthly income of all the members living in your household before taxes and other deductions. "Household" means you, plus your spouse and any dependent children (if applicable).

The LTB may decide to request financial documentation in order to verify eligibility. Financial documents must be produced on request.

There is no charge to request a fee waiver.

When Can a Fee Waiver be Requested

A fee waiver may be requested prior to paying the fee at any time during a proceeding.

What Fees will be Waived

All fees charged by the LTB and relating to the application in which you are a party or intend on being a party will be waived from the time the fee waiver request is granted.

How to Request a Fee Waiver

A. Complete the "Fee Waiver Request" Form

You must complete all three parts of the LTB "Fee Waiver Request" form, including the Declaration (Part 3 of the Form).

Where you are filing an application or submitting a request that has a fee, attach the "Fee Waiver Request" form to your application or other request and file the complete package with the LTB.

You must ensure that the "Fee Waiver Request" form is properly completed before it is filed.

B. File the "Fee Waiver Request" Form

1. In Person

[Service Ontario](#)

File the complete LTB "Fee Waiver Request" form with your application or other request. Forms completed at Service Ontario will be forwarded to the LTB for processing.

2. By Mail

Complete the online "Fee Waiver Request" form, including the Declaration (Part 3 of the Form) . Print and attach the complete form to your Application or other LTB request. Mail the package to any LTB Office location. For a list of LTB office mailing addresses go to the "Office Locations" section of the LTB website at: <https://tribunalsontario.ca/ltb/contact>

Where a request is made at Service Ontario, through mail or fax, an LTB staff member will process the forms. You will be advised by mail, within a week from the date on which the request was made, whether a fee waiver has been granted or not.

What Happens if the Fee Waiver Request is Denied

If you completed the "Payment Information and Scheduling" section of your application form and submitted it along with your "Fee Waiver Request", the LTB will use the financial information to process payment for your application or other request immediately. If you have not provided your financial information to the LTB, you must pay the fee as soon as possible, but no later than three business days of your being contacted by the LTB. If you do not pay the fee within three business days of being contacted, a copy of your denied "Fee Waiver Request" form, along with your application or other request, will be returned to you.

What Happens if my Financial Circumstances Change

You may make a new request for a fee waiver if your financial circumstances change and you meet the financial eligibility criteria at a later time during the proceeding. In this case, fees will be waived from the time the fee waiver request is granted.

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